

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRM-M-33095-2026
Date of decision: 17.06.2026

Rakesh Kumar

...Petitioner

Versus

State of Haryana

...Respondent

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. Shubham Bhardwaj, Advocate for the petitioner.

Mr. Anuj Garg, DAG, Haryana.

Mr. Shubhkarman Singh Gill, Advocate
for the complainant.

DEEPAK GUPTA, J. (ORAL)

By way of this petition filed under Section 482 of BNSS (corresponding to Section 438 of Cr.P.C) petitioner prays for grant of anticipatory bail in case FIR No.0019 dated 21.01.2026, under Sections 191(3), 190, 140(3), 115 and 351(3) of BNS, 2023, registered at Police Station Ambala City, District Ambala.

2. At the very outset, it deserves to be noticed that the present is a second petition seeking the concession of anticipatory bail in the aforesaid FIR. The earlier petition bearing CRM-M-20199-2026 was dismissed as withdrawn qua the present petitioner on 21.05.2026, though co-accused Harjit Singh was granted the concession of pre-arrest bail.

3. When confronted, learned counsel for the petitioner has not been able to point out any material change in circumstances arising after withdrawal of the earlier petition, which may justify reconsideration of the prayer for anticipatory bail. Rather, the present petition has been filed within a short span of merely twelve days during the vacation period,



without there being any subsequent event having a bearing on the merits of the matter.

4. It is by now well settled that a successive petition for anticipatory bail is maintainable only when there is a substantial change in circumstances after rejection or withdrawal of the earlier petition. In the absence of any such change, a second petition seeking the same relief would amount to re-agitating an issue already considered by the Court and would be contrary to the principles governing judicial discipline and finality of orders.

5. This Court, in CRM-M-9107-2022 titled ***Bhunesh vs. State of Haryana***, decided on 04.03.2022, had noticed the growing tendency amongst litigants of arguing an anticipatory bail petition at length, and upon sensing that the Court is not inclined to grant relief, seeking permission to withdraw the petition so as to avoid an adverse order, followed by filing a fresh petition within a short period seeking the same relief. Similar observations were reiterated in CRM-M-24400-2022 titled ***Ashok vs. State of Haryana***, decided on 31.05.2022. Such a practice, if permitted, would enable a litigant to circumvent the consequences of the earlier proceedings and repeatedly invoke the jurisdiction of the Court without any fresh cause of action.

6. The facts of the present case squarely attract the aforesaid principle. The petitioner has failed to disclose any circumstance which has changed after withdrawal of the earlier petition on 21.05.2026. The present petition is, therefore, nothing but a second attempt to secure the same relief which had already been pursued before this Court. Entertaining such a petition in the absence of any changed circumstances would amount to permitting abuse of the process of law.



7. Finding no justification to entertain the present successive petition, the same is accordingly dismissed.

17.06.2026

Yogesh

**(DEEPAK GUPTA)
JUDGE**

Whether speaking/reasoned:- Yes/No
Whether reportable:- Yes/No